STANDARD OPERATING PROCEDURE			P-4700	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	**DATE ISSUED** 06/01/06	**DATE REVISED** **11/21/23**	**DATE REVIEWED** 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 28-318, 29-404.02 THROUGH 29-427, 60-684 CALEA 1.2.8			
SUBJECT ARRESTS/CITATIONS	CROSS REFERENCE G-6300 Authorized Restraints P-4710 Transportation of Suspects			

I. Purpose:

The purpose of this policy is to establish the guidelines for making custodial arrests and issuing citations.

II. Policy:

It is the policy of the Sarpy County Sheriff's Office to adhere to arrest and release guidelines as established by Nebraska State Statutes. Deputies shall adhere to all laws and procedures when making a custodial arrest or issuing a citation in lieu of a custodial arrest.

III. Definitions:

A. ARTICUABLE FACTS: Fact's deputies can verbalize which give rise to a reasonable suspicion or probable cause that a person has committed, is committing, or is about to commit a crime.

B. BODY CAVITY SEARCH: A search involving not only a visual inspection of skin surfaces but the internal physical examination of body cavities, and, in some instances, organs such as the stomach cavity.

C. CUSTODIAL SEARCH: A search for weapons, evidence, instruments, and/or contraband incident to a lawful arrest.

D. EXIGENT CIRCUMSTANCES: Circumstances that would cause a reasonable person to believe that entry (or other prompt action) was necessary to prevent physical harm to the deputies or other persons, the destruction of relevant evidence, the escape of the suspect, or some other consequence.

E. FRISK: A search within the meaning of the Fourth Amendment but is limited in purpose to the detection of concealed weapons.

F. **GENDER**: The state of being male or female in relation to the social and cultural roles that are considered appropriate for men and women.

G. **GENDER EXPRESSION**: External appearance of one's gender identity, usually expressed through behavior, clothing, body characteristics or voice, and which may or may not conform to socially defined behaviors and characteristics typically associated with being either masculine or feminine. Others perceive a person's gender through these attributes.

H. **GENDER IDENTITY**: One's innermost concept of self as male, female, a blend of both or neither – how individuals perceive themselves and what they call themselves. One's gender identity can be the same or different from their sex assigned at birth.

I. **HOUSEHOLD MEMBER:** Household members shall include spouses or former spouses, children, persons who are presently residing together or who have resided together in the past, persons who have a child in common whether or not they have been married or have lived together at any time, other persons related by consanguinity or affinity, and persons who are presently involved in a dating relationship with each other or who have been involved in a dating relationship with each other (N.R.S. 29-404.02)

J. **INTERSEX:** A person whose sexual or reproductive anatomy or chromosomal pattern does not seem to fit typical definitions of male or female. Intersex medical conditions are sometimes referred to as disorders of sex development.

K. **REASONABLE CAUSE/PROBABLE CAUSE:** Whether at the moment the facts and circumstances within the deputy's knowledge and of which he or she has reasonably trustworthy information were sufficient to warrant a prudent man in believing that the individual had committed or was committing an offense. In determining whether reasonable cause exists to justify an arrest, a deputy may take into account all facts and circumstances. These may include those facts based upon any expert knowledge or experience which the deputy in fact possessed which a prudent deputy would judge relevant to the likelihood that a crime has been committed, and that the person to be arrested has committed it. The deputy may also rely on information he or she received from any informant whom it is reasonable under the circumstances to credit, whether or not at the time of making the arrest the officer knows the informant's identity. (N.R.S. 29-404.03)

L. **SEARCH WARRANT:** Written court order, issued by a magistrate or judge, commanding a law enforcement officer to search a specific place or person for the purpose of recovering specific property.

M. **SEX:** Biological and physiological characteristics that define males and females.

N. **STOP**: A temporary seizure of a person short of an arrest.

O. TRANSGENDER: It is generally defined as a person whose gender identity (i.e. internal sense of being male or female) is different than the person's assigned sex at birth. Transgender persons for purposes of this policy is used as an umbrella term that may include, but is not limited to, those who identify as transsexual (sometimes characterized by being the process of or planning to transition gender through sex reassignment surgery, legal processes, or otherwise), diagnosed with gender dysphoria, multigender, androgynous, third gender, or cross dresser. It is not defined by one's sexual orientation (such as gay, lesbian, or straight). Any identity which includes a sense of blending or alternating the binary concepts of masculinity and femininity might be encompassed by the term as used in this policy.

IV. Procedures:

A. Arrest without a Warrant (N.R.S. 29-404.02) : Except as provided in section 42-928 (protection order violations) a deputy may arrest a person without a warrant if the deputy has reasonable cause to believe that such person has committed:

1. A felony (if person is inside a home, a warrant must be obtained if a reasonable amount of time has passed).

2. A misdemeanor and the deputy has reasonable cause to believe that such person either:

- **a)** Will not be apprehended unless immediately arrested,
- **b)** May cause injury to himself or herself or others or damage to property unless immediately arrested,
- **c)** May destroy or conceal evidence of the commission of such misdemeanor; or
- **d)** Has committed a misdemeanor in the presence of the deputy (does not require the deputy see the crime; the deputy may be present if the crime occurred within one of the deputy's five senses).

3. One or more of the following acts to one or more household members, whether or not committed in the presence of the deputy:

- **a)** Attempting to cause or intentionally and knowingly causing bodily injury with or without a dangerous instrument;
- **b)** Placing, by physical menace, another in fear of imminent bodily injury; or
- **c)** Engaging in sexual contact or sexual penetration without consent as defined in N.R.S. 28-318.

4. With the exception of driving under the influence, no person shall be taken into custody for a violation less than a class III misdemeanor or for an infraction.

B. Custodial Arrest-Deputy Responsibilities: Deputies taking an individual into custody under the above conditions shall adhere to the following procedures:

1. Whenever possible, a deputy shall summon assistance prior to placing a suspect in custody.

2. The arresting deputy shall handcuff the suspect using appropriate technique and may use additional authorized restraints, if necessary (see G-6300 Authorized Restraints).

3. Custodial Search: The custodial search is a search for weapons, evidence, and/or contraband and is incident to a lawful arrest. After the subject is handcuffed, the deputy shall:

a) Make a thorough and complete search of the person and the personal property in his or her actual possession, e.g. briefcase, purse, etc. (see section IV. I, 2. for search procedures).

b) Incident to an arrest, deputies may conduct a protective sweep of the area as a precautionary measure and without probable cause or reasonable suspicion, look in closets and other spaces immediately adjoining the place of arrest from which an attack could be immediately launched.

(1) A protective sweep, aimed at protecting the arresting deputies, is NOT a full search of the premises, but may extend only to a cursory inspection of those spaces where a person may be found.

(2) A protective sweep will last no longer than is necessary to dispel the reasonable suspicion of danger and shall, in all cases, last no longer than it takes to complete the arrest and depart the premises.

c) Incident to an arrest, the U.S. Supreme Court permits a broader sweep when the searching officer possesses a reasonable belief based on specific and articulable facts that the area to be swept harbors an individual posing a danger to those on the arrest scene.

4. The arresting deputy shall transport the individual to the Sarpy County Jail (see P-4710 Transportation of Suspects).

5. The arresting deputy shall complete the following forms and provide them to jail staff:

(1) A Jail Intake Assessment Form.

(2) An Affidavit shall be completed if:

(a) The individual is charged with a felony.
(b) The individual is charged with a protection order violation.
(c) The individual is charged with a misdemeanor requiring a cash bond and a citation is completed by the arresting officer.

(3) The Affidavit shall be reviewed and notarized.

(4) A Uniform Citation including a court date (four to six weeks after the date of the arrest). The arresting deputy shall write "jailed" on the signature line.

6. The arresting deputy shall complete the appropriate arrest report.

7. The following misdemeanor offenses shall result in a custodial arrest unless otherwise directed by a supervisor:

a) Resisting arrest.
b) Obstructing a peace officer.
c) Sexual assault.
d) Disturbing the peace.
e) Domestic assault.
f) Protection order violations.
g) Driving under the influence (alcohol or drugs).

C. Warrant Arrests-Deputy Responsibilities:

1. As required by Nebraska State Law, a deputy shall take any person named on a valid warrant into custody.

2. All warrants shall be verified with Communications prior to transport and if the warrant is from outside of Nebraska, Communications shall ensure that the requesting agency will extradite.

3. The procedures listed in IV, B, 1 through 4 above shall be followed.

4. In the case of a warrant arrest, no further action need be taken nor forms completed by the arresting deputy (e.g. citation, affidavit, arrest report, etc.), with the exception of the Jail Intake Assessment Form.

D. Strip/Body Cavity Searches

1. The use of strip searches and body cavity searches may, under certain circumstances, be necessary to ensure the safety of deputies, civilians, and detainees.

2. The purpose of this type of a search is to detect and secure evidence of criminal activity and to safeguard the security and safety of the detention and holding facilities.

3. Strip and/or body cavity searches may be conducted only with proper authorization and justification, and with the utmost regard for the dignity of those being searched.

4. Strip Searches:

a) Strip Searches will typically be performed by the Sarpy County Department of Corrections after booking the suspect in accordance with procedures.

b) If the deputy believes that the suspect should be strip searched, they shall notify corrections during the booking process. The arresting deputy shall inform the staff of why a strip search is needed and what item(s) they reasonably believe can be found on the individual's person.

c) If a deputy believes that a strip search needs to be conducted prior to booking the suspect into corrections the following procedures will be followed:

(1) A Sheriff's Office Commander must approve all strip searches not pursuant to a search warrant.

EXCEPTION: A Sergeant, on custodial narcotics arrests may approve strip searches.

(2) Field strip searches of prisoners shall be conducted only when exigent circumstances exist.

(3) Individuals arrested for traffic violations and other minor offenses of a nonviolent nature will not be subject to strip searches unless the arresting deputy has an articulable, probable cause to believe that the individual is concealing contraband or weapons. Probable cause may be based upon, but is not limited to the following:

(a) The nature of the offense(s) charged.

(b) The arrestee's appearance and demeanor.

(c) The circumstances surrounding the arrest.

(d) The arrestee's criminal record, particularly past crimes of violence and narcotics offenses.

(e) The discovery of evidence of a major offense, either in plain view or in the course of a search incident to arrest.

(f) Detection of suspicious objects beneath the suspect's clothing during a field search incident to arrest.

(4) When authorized by the supervising authority, strip searches may be conducted only as follows:

(a) By deputies who are familiar with the process.

(b) In conformance with hygienic procedures and professional practices.

(c) In a place that is not accessible to the public where general access is restricted, preferably in detention.

(d) By fewest number of deputies necessary and only by those of the same gender (see section IV. I, 2). At least two employees shall be present during the strip search.

(e) Under conditions that provide privacy from all but those authorized to conduct the search.

5. Body Cavity Searches:

a) The Sarpy County Sheriff's Office recognizes that body cavity searches are highly invasive of personal privacy and are reasonable where the suspected offense(s) is of a serious nature and/or poses a threat to the safety of deputies or others and/or the security of the Sarpy County Department of Corrections.

b) Should visual examination of a suspect during a strip search and/or other information lead a deputy to believe that the suspect is concealing a weapon, evidence or contraband within a body cavity, the following procedures shall be followed:

(1) A warrant shall be required to obtain a body cavity search. Deputies shall obtain the approval of a command officer to seek a warrant for a body cavity search.

(a) Probable cause must exist for a body cavity search. The affidavit for a search warrant will clearly define the nature of the alleged offense and the basis for the deputy's probable cause.

(b) If circumstances warrant, the deputy will advise the suspect of their Miranda rights and ask questions to determine the nature and location of the contraband. This approach may influence the suspect to voluntarily remove the evidence or contraband.

(c) Body cavity searches shall be conducted by a trained medical professional in a medical facility. Deputies shall not conduct body cavity searches.

(d) The suspect will be kept under constant visual surveillance until a body cavity search is conducted or an alternative course of action taken.

(e) The body cavity search will be conducted as soon as practical after the warrant is received.

(f) A deputy of the same sex as the suspect will be present during the body cavity search to document if any evidence/contraband is recovered (see section IV. I, 2).

E. Citation In Lieu of Custodial Arrest-Deputy Responsibilities: A deputy may issue a Uniform Citation in lieu of a custodial arrest in the case of most misdemeanors and infractions including driving under suspension or revocation. Nebraska State Law (29-422) encourages citations in lieu of arrest as long as it is consistent with effective enforcement of the law and the protection of the public. Deputies issuing Uniform Citations shall adhere to the following procedures:

1. The deputy shall ensure the citation is completed with all required information and via the Traffic and Criminal Software (TraCS) program, or in a legible manner, if utilizing a hand-written citation.

2. The deputy shall assign a court date four to six weeks from the date of the citation.

3. Deputies shall attempt to retrieve a phone number for an offender being issued a citation.

a) If an offender does not have a working phone number, or is uncooperative in providing a phone number, this requirement can be bypassed.

4. The deputy shall explain the citation to the individual and require his or her signature as assurance that he or she shall appear in court.

a) If an individual refuses to sign a citation, he or she shall be advised refusal shall result in a custodial arrest and booking into jail.

b) Individuals continuing to refuse to sign a citation for a traffic infraction shall be placed into custody and charged with Refusal to Sign (N.R.S. 60-684).

c) Individuals refusing to sign a citation for a misdemeanor offense shall be placed into custody, no further charges shall be added (see N.R.S. 29-427 Detention of Accused).

d) Individuals charged with Possession of Marijuana, one ounce or less (first offense) who refuse to sign the citation shall be issued the citation and given a copy of the unsigned citation. He or she shall NOT be taken into custody.

5. The deputy shall provide the individual with a copy of the citation.

6. Deputies shall complete arrest reports on misdemeanor arrests where a citation is issued in lieu of a custodial arrest. The following traffic offenses do not require an incident/arrest report. Rather, in the prosecutor's notes section of the citation, deputies shall place a short narrative/description of the offense to the prosecutor:

a) Operating a motor vehicle without a license.
b) Driving under revocation/suspension.
c) Willful reckless/reckless driving.
d) Exhibition of speed.
e) Violation of provisional operator's permit.

7. Under certain circumstances (e.g. the suspect is hospitalized and not considered dangerous), a felony suspect may be issued a citation in lieu of a custodial arrest with the permission of a shift supervisor or command officer.

8. Deputies shall adhere to the proper TraCS program protocol when issuing an electronic citation.

F. **Detention in Lieu of Citation:** Generally, citations shall be issued for misdemeanor offenses with the following exceptions:

1. Deputies who have grounds to make an arrest may take the accused into custody or, already having done so, detain him further when the accused fails

to identify himself satisfactorily, or refuses to sign the citation or when the deputy has reasonable grounds to believe that:

a) The accused will refuse to respond to the citation.

b) Such custody is necessary to protect the accused or others when his continued liberty would constitute a risk of immediate harm.

c) Such action is necessary in order to carry out legitimate investigative functions.

d) The accused has no ties to the jurisdiction reasonably sufficient to assure his appearance.

e) The accused has previously failed to appear in response to a citation.

2. If a deputy makes a custodial arrest under the above conditions, he or she shall document in the arrest report the specific reasons and circumstances leading to the custodial arrest in lieu of a citation.

G. Citations

1. As of January 1, 2019, all citations must be in 8.5” x 11” format, whether hand-written or electronically issued. Beginning January 1, 2020, all citations will be required to be submitted electronically via the TraCS program.

H. Reporting

1. Deputies shall document frisks and searches as follows:

a) Frisks and searches that result in deputies locating contraband and/or weapons.
b) Frisks and searches conducted by a deputy of the opposite sex of the suspect.
c) Frisks and searches that deputy believes should be documented based on their training and experience (e.g., frisk or search that they believe may result in a complaint).

2. When documenting a frisk or a search deputies shall complete all applicable reports based on the circumstances and document, at a minimum, the following:

a) Deputies will articulate the reasonable suspicion, probable cause, exigent circumstances, or consent of the subject that led to the frisk/search.
b) Identity of the deputy conducting the frisk/search.

c) Identity of the approving authority when applicable.
d) Date, time and place of the frisk/search.
e) Identity of the individual frisked/searched.
f) Identity of those present during the frisk/search.
g) A detailed description of the nature and extent of the frisk/search.
h) Any weapons, evidence, property, or contraband found during the frisk/search.

I. Special Circumstances

1. Juveniles:

a) Strip and body cavity searches of juveniles will only be conducted in exigent circumstances.
b) Strip searches will be conducted at the Juvenile Justice Center.
c) Body cavity searches will be conducted by a medical professional at a medical facility.
d) All other searches will be conducted in accordance with the procedures in this policy.

2. Sex and Gender Identity:

a) Frisks

(1) Due to the exigent nature of a frisk, frisks will not be delayed until a deputy of the same sex or preferred gender is located.

(2) When possible, persons will be frisked by a deputy of the same sex if such a deputy is on-scene.

(3) Deputies shall adhere to the following procedures when frisking a suspect of the opposite sex or gender identity:

(a) When conducting a frisk on a suspect of the opposite sex or gender identity, the scope of the frisk shall be for WEAPONS only - to include the waistband, checking pockets with the backside of the hand, and outer garments.

(b) Deputies shall conduct the frisk in view of a camera when feasible.

(c) If no camera is available, a second deputy shall be present to witness the frisk.

(d) Searches conducted under these circumstances, as with all searches, shall be conducted with proper decorum and due consideration for the privacy of the individual.

(e) Deputies shall note whether the frisk was recorded and the name/badge number of any other deputies present during the frisk.

b) Custodial Searches

(1) Immediately following placing a person in handcuffs and prior to conducting a custodial search, the deputy will conduct a search for weapons.

(2) When possible, persons will be searched by a deputy of the same sex if such a deputy is on-scene or can arrive within a reasonable amount of time.

(a) A deputy may rely on available documentation to determine a person's sex. However, if a person notifies a deputy that the person's gender identity differs from the person's listed sex AND the person requests to be searched by a male or female deputy, the request will be granted if such a request can be reasonably and expeditiously accommodated without risk to deputy safety.

(i) The deputy will document the person's noted gender identity in his/her report.

(ii) If the requesting person abuses the request (e.g., makes sexual comments to the searching deputy), that person will be searched in accordance with their listed sex.

(b) Under exigent circumstances, including but not limited to the existence of reasonable suspicion of imminent threat of bodily harm or escape, any deputy may conduct a custodial search of a person regardless of the sex or gender identity of the person. In such circumstances, the search will not be delayed until a deputy of the same/preferred sex is located.

(c) Deputies will adhere to the following procedures when searching a suspect of a different sex or gender identity:

(i) Deputies will conduct the search in view of a camera when feasible.

(ii) If no camera is available a second deputy will be present to witness the search.

(iii) Deputies will note whether the search was recorded, the camera it was recorded with, and the name/badge number of any other deputies present during the search.

(iv) Searches conducted under these circumstances, as with all searches, shall be conducted with proper decorum and due consideration for the privacy of the individual.

3. Strip Searches:

a) Strip searches conducted by deputies will be conducted by deputies of the same sex as the suspect.

b) If the suspect states to the deputy that they identify as a gender other than their documented sex, the following procedures will be followed:

(1) Two deputies of the same sex as the suspect will always conduct the strip search regardless of the suspect's gender identity.

(2) If the suspect states that they would prefer to have a male or female deputy present during the strip search, the request will be granted if feasible. This third deputy will not be part of conducting the strip search.

(3) If requested, and a deputy of the suspect's preferred sex is available, the third deputy will be present nearby, but not have line of sight of the suspect being searched.

c) Strip searches conducted by Department of Corrections employees will be conducted in accordance with their policies and procedures.

4. Body Cavity Searches

a) Body cavity searches shall not be conducted by deputies but shall be conducted by trained medical professionals in a medical facility.

(1) A deputy of the same sex as the suspect shall be present during the body cavity search.

(2) If the suspect indicates to the deputy that they identify as a gender other than their documented sex, the deputy will ask the suspect if they would like an additional male or female deputy to be present during the body cavity search. This request will be honored, if feasible.